

receiving professional services from a lawyer.” (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1094, 1092.) “Whether fees are incurred is evidenced by an obligation to pay attorney fees, the existence of an attorney-client relationship....” (*Dzwonkowski v. Spinella* (2011) 200 Cal.App.4th 930, 935.) Accordingly, the Court strikes 1.0 hour from Attorney Hoddick’s billing.

Counsel then seeks 3.0 hours in anticipated wrap-up fees to review the opposition, draft the reply, and attend the hearing on this motion. However, counsel already billed 3.0 hours for drafting the initial fee motion. There is no reason why such a routine fee motion should require more than 4.0 hours to draft and defend. Accordingly, the Court strikes 2.0 hours from the anticipated fees, and awards only 1.0 hour in anticipated fees.

As for the remaining time entries, they are reasonable under the circumstances. Defendant’s challenges for unnecessary/overbilled tasks, discovery, etc. are not supported.

Costs:

Civil Code §1794(d) permits the court to award reasonably incurred costs and expenses. Under the Song-Beverly Act, the Legislature intended the use of “costs and expenses” to include items excluded under C.C.P. §1033.5. (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137-138; accord *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 42-43.)

Plaintiff has not filed a separate memorandum of costs, but seeks to recover \$682.91 in costs through this motion. Upon review, Plaintiff’s request for costs appear to be reasonably incurred. Defendant does not contest Plaintiff’s request for costs.

Plaintiff’s Motion for Attorney’s Fees, Costs and Expenses GRANTED in Part.

Award of \$8,800+ in costs (16.0 hours at \$550/hr) + \$682.91 costs for total of \$9,482.91.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2604993	WORLOW VS TEMPLE	HEARING ON PETITION FOR TEMPORARY INJUNCTIVE RELIEF AND REQUEST TO MAINTAIN STATUS QUO

Tentative Ruling: No tentative ruling. No proof of service of Respondent. Hearing on Petition continued to 10.06.26.